

STATE OF MICHIGAN
IN THE CIRCUIT COURT FOR THE COUNTY OF MUSKEGON

ANDREW PIGORS

Plaintiff,

VS.

EMILY WATSON

Defendant.

FILE NO. **2024-001507-DC**

RECOMMENDATION AND ORDER
REGARDING PARENTING TIME

HON. JENNY L. MCNEILL

Self-Represented Litigant
Attorney for Plaintiff

Jennifer Barnes
Attorney for Defendant

The Muskegon County Family Court conducted a review and investigation and recommends entry of the following Order. If you disagree with this recommendation, you must file written Objection by completing the Objection to Recommendation and Order regarding Parenting Time form and file it with Family Court Services on or before **21 Days** from the date this recommended order is mailed/emailed to you. If you do not object, this proposed order will be presented to the court for signature and entry.

This matter was before Brandy Klapatch, Family Court Specialist for the Muskegon County Family Court Services pursuant to Plaintiff's Motion for Make Up Parenting Time; said Specialist having reviewed the Motion and Case File hereby requests the entry of the proposed Order set forth below:

THE FAMILY COURT SPECIALIST FINDS:

1. On April 1, 2024 a Summons and Complaint for Custody, Parenting Time and Child Support was filed with the Court.
2. On April 11, 2024 Plaintiff filed a Motion regarding Custody.
3. On April 23, 2024 Defendant filed an Answer to Complaint.
4. On April 26, 2024 a Facilitative Information Gathering (FIG) Conference was conducted by Family Counselor, Heather Casperson, LMSW, ACSW. Parties were met with separately due to a Personal Protection Order (23-005907-PP).

5. On April 29, 2024 an Ex Parte Order for Custody, Parenting Time and Child Support following Facilitative Information Gathering Conference was entered for the following:

Joint Legal and Joint Physical Custody of minor child, LINCOLN (age 19 months)

Parenting Time on alternating weeks with exchanges on Friday at 5:30pm at the Muskegon Police Department. Plaintiff Father's week to begin May 3, 2024.

Parties to communicate via the Co-Parenting Communication application, "AppClose".

Father shall not ingest cocaine or any other non-prescribed mind-altering substance 12 hours prior to or during parenting times.

Alternating Holiday schedule was provided.

Additional parenting times or changes permitted by agreement between parties.

Child Support obligations calculated with application of each party exercising 182.5 overnights each year.

6. On May 13, 2024 Defendant Mother filed an Objection to the Ex Parte Order entered on 4/29/2024.
7. On May 23, 2024 Plaintiff Father filed a Response to the Objection and filed a Motion for Make Up Parenting Time requesting being granted 3 weeks of Make Up Parenting Time reporting he had been denied parenting time from March 26, 2024 until May 3, 2024.
8. On May 30, 2024 a Notice for full day Custody Trial to be held on July 17, 2024 beginning at 9:00am was sent to the parties.
9. Having reviewed the Case File, pursuant to the Ex Parte Order entered on April 29, 2024, Plaintiff Father's Parenting Time was to begin on May 3, 2024. There are no prior Orders entered by this Court granting the Plaintiff specific parenting times prior to May 3, 2024. The Plaintiff's request for Make Up Parenting Time for the reported denied parenting times between March 26, 2024 and May 3, 2024 is denied and the Motion regarding Parenting Time filed on May 23, 2024 is Dismissed.

ORDER REGARDING PARENTING TIME

IT IS HEREBY THE RECOMMENDATION AND ORDER that the Plaintiff Father, ANDREW PIGORS's Motion regarding Parenting Time filed on May 23, 2024 requesting Make Up Parenting Time is Denied and Dismissed.

The residence of the minor child shall not be removed from the State of Michigan without the prior approval of the Court; and the custodial parent shall keep the Muskegon County Family Court Services fully informed of the current address of the child.

A parent whose custody or parenting time of a child is governed by this order shall not change the legal residence of the child except in compliance with Section 11 of the "Child Custody Act of 1970", 1970 PA 91, MCL 722.31.

Except otherwise provided in this Order, neither parent shall exercise parenting time in a foreign country/nation that is not a party to the Hague Convention on the Civil Aspects of International Child Abduction.

INHERENT RIGHT

The minor child of the parties has the inherent right to the natural affections and love of both parents and neither party shall do anything which may estrange the minor child from the other party, or tend to discredit, cause disrespect, or diminish the natural affections of the minor child for the other party.

CONTINUATION OF PRIOR ORDERS

Prior Orders not specifically or by implication modified in this Order are preserved and remain in effect.

NOTICE REQUIREMENTS

Each party shall immediately notify the Office of Family Court Services, in writing, of any changes in their mailing address, residence address, email address and name including address of current source of income. Each party shall also keep Family Court Services informed of any health care coverage available to them; the name of the insurance company, health care organization, or health maintenance organization; the policy certificate or contract number; and the names and birth dates of the persons who are covered.

Recommended and Prepared by:



06/05/2024
04:16 PM

Brandy J. Klapatch
Family Court Specialist

IT IS SO ORDERED.

HONORABLE